



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 21, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202001357 regarding Police Officer Juan Trinidad, Tax No. [REDACTED] (DADS No. 2022-24619)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Police Officer Trinidad do not arise to the level of actionable misconduct. Police officers are permitted to un-holster and point their respective CEW at a potential threat in order to deescalate the situation and maintain order necessary to affect all stages of an arrest, including the removal of an arrestee from the scene. That is precisely what Police Officer Trinidad did in this instance when he pointed his un-activated CEW at an unruly individual whose aggressive behavior threatened the safety of the juvenile arrestee as well as the safety of Police Officer Trinidad and his fellow officers.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Juan Trinidad receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Abuse of Authority – Threat of Force).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office

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